

STATE OF NEW YORK

122--A

Cal. No. 323

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. CLEARE, MAY, ROLISON, WEBB, WEBER -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT directing the departments of environmental conservation and health to establish environmental standards for ambient lead and lead contamination in soils; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative findings. The legislature finds and declares
2 that there is a present need to establish New York standards with
3 respect to levels of ambient lead and levels of lead contamination in
4 soils and on floors and window sills. The legislature finds that the
5 current regulatory standards are inadequate to protect the general
6 public and particularly small children from the harmful effects of
7 ingesting or inhaling lead dust, often resulting from lead paint, and
8 coming into contact with lead on exposed surfaces. The legislature
9 declares that it shall be the responsibility of the commissioner of
10 environmental conservation, in consultation with the commissioner of
11 health, to adopt standards for ambient lead and lead contamination of
12 soil and windows and floors, in a manner that would be fully protective
13 of children's health, and in accordance with the procedures set forth in
14 the environmental conservation law.

15 § 2. No later than one hundred eighty days from the effective date of
16 this act, the departments of environmental conservation and health shall
17 adopt and promulgate new standards, and update any existing standards as

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD00259-04-5

1 appropriate, for dust lead hazards, soil-lead hazards and ambient air
2 quality standards for the level of lead in various media that will
3 result in blood lead levels that are no higher than a target that is
4 fully protective of human health and which at a minimum include consid-
5 eration of recommendations from the centers for disease control, which
6 shall in no event be less stringent than the standards set forth in 40
7 CFR Part 745, as of January 13, 2025.

8 § 3. This act shall take effect on the ninetieth day after it shall
9 have become a law and shall expire one year after such effective date
10 when upon such date the provisions of this act shall be repealed.
11 Effective immediately, the addition, amendment and/or repeal of any rule
12 or regulation necessary for the implementation of this act on its effec-
13 tive date are authorized to be made and completed on or before such
14 date.